

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2019-8312 & 2019-8314

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**STIPULATION AND FINAL AGENCY ORDER**

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IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE REGISTRATION TO PRACTICE AS A PROFESSIONAL COUNSELOR CANDIDATE AND THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF JON COTTEN CUNNINGHAM, REGISTRATION NO. LPCC.13856 AND LICENSE NO. LPC.12210,

Respondent.

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IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Jon Cotten Cunningham ("Respondent"), as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").

2. Respondent was registered to practice as a Licensed Professional Counselor Candidate ("LPCC") in the State of Colorado on May 28, 2014, having been issued registration number LPCC.13856, which expired on May 28, 2018. Respondent was licensed to practice as a Professional Counselor ("LPC") in the State of Colorado on November 21, 2014 having been issued license number LPC.12210, which was "active" until November 21, 2018 at which time it became "active-with conditions" and then expired on August 31, 2019.

3. This Order is a full and final resolution of case numbers 2019-8312 and 2019-8314. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.

4. Respondent admits the following:

a. On or about November 20, 2018, Respondent entered into a Stipulation and Final Agency Order with the Board in case numbers 2017-

6147 and 2017-6149 ("2017 Order") and agreed to complete at least 20 hours of Board-approved continuing education (CE) courses in the area of ethics and boundaries prior to November 20, 2019. The 2017 Order was based on Respondent maintaining a relationship with a client that is likely to impair such person's professional judgement or increase the risk of client exploitation.

b. On or about March 6, 2020, case number 2019-8312 and 2019-8314 were initiated due to non-compliance of the 2017 Order which required Respondent to complete 20 CEs by November 20, 2019.

c. On or around November 21, 2019 attempts were made to contact Respondent. To date, no response or correspondence has been received from Respondent and the Board has no record that the required CEs in the 2017 Order have been completed. Respondent therefore is in violation of the 2017 Order.

d. This order supersedes the 2017 Order.

e. Respondent failed to comply with a Board order.

5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated section 12-245-224(1)(b) C.R.S., which states:

**12-245-224. Prohibited activities--related provisions.** (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article 245, an applicable provision of article 20 or 30 of this title 12, a rule promulgated pursuant to this article 245 or any order of a board established pursuant to this article 245.

6. By virtue of the admissions contained in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanctions that the Board believes are necessary to protect the public health, safety and welfare.

### RELINQUISHMENT

7. Respondent hereby relinquishes his registration and the right to practice as a Licensed Professional Counselor Candidate as well as permanently relinquishes his license and the right to practice as a Licensed Professional Counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept such relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of section 12-20-404(3), C.R.S.

8. Following relinquishment of his registration and licensure, Respondent shall not perform any act requiring a registration or a license to practice.

9. Respondent understands that if he applies for registration or licensure at any future time, Respondent will be required to comply with all criteria for initial registration that exist at the time of application.

### TERMS AND CONDITIONS

10. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

11. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

12. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

13. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, 12-245-214, 12-245-226, and 24-4-104(9), C.R.S.

14. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

15. Respondent shall obey all state and federal laws while this Order is in effect.

16. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

17. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

18. This Order shall be admissible as evidence at any hearing held before the Board.

19. This Order shall be a public record in the custody of the Board.

**AGREED TO AND ACCEPTED BY:**

RESPONDENT

  
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JON COTTEN CUNNINGHAM  
REGISTRATION NO. LPCC.13856  
LICENSE NO. LPC.12210

**AGREED TO AND ORDERED BY:**

STATE BOARD OF LICENSED PROFESSIONAL  
COUNSELOR EXAMINERS

  
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WENDY ANDERSON  
Interim Program Director

Effective this 28th day of July, 2020.